

Order Approving Compromise of Minor's Claim submitted March 16, 2026.

13. 9:00 AM CASE NUMBER: C25-02976
CASE NAME: LILIA ORTEGON VALBUENA VS. BRIAN FAULKNER
*HEARING ON MOTION IN RE: STRIKE
FILED BY: FAULKNER, BRIAN
TENTATIVE RULING:

Motion cancelled by moving party.

14. 9:00 AM CASE NUMBER: C25-03127
CASE NAME: SANDRA FUNES VS. KEVIN KIRKPATRICK
HEARING IN RE: MOTION TO WITHDRAW AS PLTF'S COUNSEL - SET BY THE COURTROOM
FILED BY:
TENTATIVE RULING:

The court grants the unopposed motion of attorney Carlo A. Rolando to be relieved as counsel for Plaintiff Sandra Funes. The court will sign the order submitted to the Court on May 15, 2026 on form MC-053. The order will become effective upon the filing of the proof of service of the signed order upon the client, Sandra Funes.

15. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. STEVE SMITH
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT IMPOSE MONETARY SANCTIONS OF UP TO \$1,000 ON PLAINTIFF CECILY TAYLOR FOR SUBMITTING NON-EXISTENT, FALSE LEGAL AUTHORITY TO THE COURT & MISREPRESENTING THE HOLDINGS AND CONTENT OF EXISTING LEGAL AUTHORITY TO THE COURT.(PER TR ON 4/10/26)
FILED BY:
TENTATIVE RULING:

Notice: This decision contains references to invalid citations in the original text of the opinion. They are relevant to the decision and therefore have not been editorially corrected.

On February 13, 2026, Plaintiff Cecily Taylor filed a Motion to Stay All Further Proceedings Pending Resolution of Motion to Disqualify Counsel (“Motion”)

In support of that Motion and attached to it, Plaintiff submitted a Memorandum of Points and Authorities. As the Court noted in its Tentative Ruling posted on April 10, 2026, it appears that Plaintiff may have relied on using Artificial Intelligence (AI) to assist with preparing her brief. Most, if not all, of the citations are either non-existent or do not stand for the proposition asserted.

Plaintiff’s notice indicates that the Court has authority to stay the action under Code of Civil Procedure section 371.5. While the Code of Civil Procedure contains a § 371 and § 372, it does not contain a § 371.5.

The main body of Plaintiff’s motion relies on Code of Civil Procedure §§ 128 (a)(3) and 373.5. Plaintiff asserts that § 128 (a)(3) provides that “every court has the inherent power ‘to issue any order necessary to the exercise of its jurisdiction.’” (Motion at 4:13-16.) Section 128 (a)(3) actually states that the court has the power: “To provide for the orderly conduct of proceedings before it, or its officers.” The language cited by Plaintiff appears nowhere in the statute.

Plaintiff also contends that § 373.5 “expressly authorizes the Court to ‘stay the proceedings in the action or any part thereof’ whenever ‘irreparable injury would result from a continuance of the action.’” (Motion at 4:26-5:1.) Again, neither of those quotations appear in that statute. Instead, § 373.5 pertains to appointment of guardian ad litem where unascertained persons of designated class are interested in property. This has nothing to do with the Court’s inherent power to stay proceedings.

Plaintiff’s citation to case authority fares no better. She cites to *Landis v. North American Co.* (1936) 299 U.S. 248, 254-55 for the proposition that courts may suspend proceedings “for the purpose of justice.” (Motion at 4:16-20.) First off, that quotation appears nowhere in that case. Second, that case discussed the propriety of issuing a stay where a similar action was filed in a completely different venue. That situation does not apply here. Likewise, Plaintiff’s citation to *Mowrer v. Superior Court* (1969) 3 Cal.App.3d 223, 227-28 does not support the parenthetical Plaintiff provides related thereto. That case did not involve a stay but instead dealt with contempt proceedings. Issues not relevant to the

current motion.

Finally, Plaintiff cites *Freiberg v. City of Santa Ana* (1985) 167 Cal.App.3d 332, 338 for the proposition that good cause need only show prejudice or inefficiency. (Motion at 5:17-18.) A search for that citation brings up the case of *Barbary Coast Furniture Co. v. Sjolie* (1985) 167 Cal.App.3d 319 – which runs through page 335. The pin cite to page 338 refers to the case *Ciampi v. Red Carpet Corp.* (1985) 167 Cal.App.3d 336. The Court has been unable to locate a case styled as *Freiberg v. City of Santa Ana*.

In *Noland v. Land of the Free, L.P.* (2025) 114 Cal. App. 5th 426, a unanimous panel of the Court of Appeal for the Second Appellate District held:

[R]elying on fabricated legal authority is sanctionable. As a district judge recently held when presented with nonexistent precedent generated by ChatGPT: “A fake opinion is not ‘existing law’ and citation to a fake opinion does not provide a non-frivolous ground for extending, modifying, or reversing existing law, or for establishing new law. An attempt to persuade a court or oppose an adversary by relying on fake opinions is an abuse of the adversary system.” (citations omitted) *Noland*, supra, 114 Cal. App. 5th at 445.

As noted by the *Nolan* court, it is a fundamental duty of attorneys to *read* the legal authorities they cite to determine that the authorities stand for the proposition for which they are cited. (*Ibid.*) Failing to do so is sanctionable conduct.

While *Nolan* involves an attorney’s actions in providing false and misleading authority to the court, the same principles apply to non-represented parties. “Pro. per. litigants are held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, courts “see no reason why the rules of professional conduct, at least as those rules govern conduct in the actual course of litigation, should not apply to pro per litigants in the very cases where pro per litigants elect to act as their own attorneys.” (*Ibid.*) “To say otherwise would be to give pro per litigants ... an unfair advantage over parties represented by attorneys bound by the code.” (*Ibid.*) “Under those rules, an attorney may not intentionally mislead the court. [citation] Neither may a pro per.” (*Ibid.*)

“[J]udges are not required to act as counsel for self-represented part[ies], instead, self-represented litigants ‘must expect and receive the same treatment as if represented by an attorney – no different, no better, no worse.’” (*Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811 quoting *Taylor v. Bell* (1971) 21 Cal.App.3d 1002, 1009.)

In its ruling denying Plaintiff’s Motion to Stay Proceedings and Disqualify Counsel, the court issued an Order to Show Cause for Plaintiff to appear on Friday May 8, 2026 at 9:00 a.m. in Department 32, and show cause, if cause there be, why the court should not impose monetary sanctions of up to \$1,000 for submitting non-existent, that is, false legal authority to the Court, and for misrepresenting the holdings and content of existing legal authority to the Court. Any response by Plaintiff to this Order to Show Cause must be in writing and must be filed and served on all parties or before noon on May 1, 2026.

On May 1, 2026, the court on its own motion continued the hearing on the Order to Show Cause to June 12, 2026 at 9:00 a.m. in Dept. 32.

On June 1, 2026, Plaintiff filed a pleading styled, “Plaintiff Cecily Taylor’s Opposition to Defendants’ Motion for Sanctions and Response to Order to Show Cause re: Sanctions, Memorandum of Points and Authorities; Declaration of Cecily Taylor” (“Plaintiff’s June 1 Opposition”) in which she stated:

“Any citation issues or inaccuracies in my February 13, 2026 Motion to Stay All Further Proceedings were made in good faith based on the extremely limited resources available to me at the time. They were not made with any intent to mislead the Court or to harass Defendants.” (Plaintiff’s June 1 Opposition, 7:21-26.)

The court is disappointed in Plaintiff’s Response to the OSC. She does not state how she arrived at non-existent court citations or how she could, in good faith, have cited cases for propositions that do not appear in the cases. She states only that she had “extremely limited resources” and that these citations were not made with intent to defraud. She does not state whether she used an AI

engine and submitted those results to the court without confirming the validity of those case citations.

It is a fundamental duty of attorneys and non-attorneys alike to *read* the legal authorities they cite to determine that the authorities stand for the proposition for which they are cited. The court believes that both attorneys and non-attorneys alike must be on notice that AI engines have a risk of generating false or “hallucinated” results to queries of any kind -- legal citations included -- and that results obtained through AI need to be verified before submission to court. A trip to one’s county law library can help one determine whether citations are *bona fide*, and in addition whether *bona fide* citations are currently “good” law.

The court imposes a sanction of \$50 on Plaintiff, due and payable within 45 calendar days of this order to the Contra Costa Superior Court. In the alternative, Plaintiff may visit a county law library, learn how to verify legal citations with the assistance of a law librarian, and submit a minimum 500 word essay describing how to verify legal citations obtained from AI. In addition to this essay, Plaintiff must also submit a declaration from a law librarian describing under penalty of perjury [1] their name and job, and [2] what resources for verifying legal citations he or she explained to Plaintiff on what date. If Plaintiff opts to submit an essay and a law librarian’s declaration, these documents are due to be filed and served within 45 calendar days of this order. Every county in California has a law library. The law library in Contra Costa County is located at 1026 Escobar Street, Suite 2C, Martinez, CA 94553.

Failure either to pay the sanction or submit an essay and declaration in a timely fashion may result in further monetary sanctions. Forty five days from June 12, 2026 is July 27, 2026.

16. 9:00 AM CASE NUMBER: C26-00225
CASE NAME: MONTE DAVIS VS. VINCENT RODRIGUEZ
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT RE: VINCENT RODRIQUEZ
FILED BY: RODRIGUEZ, VINCENT
TENTATIVE RULING:

The unopposed motion to set aside the default of Vincent Rodriguez is granted. The default taken on March 16, 2026 is set aside. Defendant Vincent Rodriguez must file a responsive pleading within 15 calendar days of June 12, 2026.